

OREGON CITY COURIER

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SCHUEBEL HOLDS UNLAWFUL PLACE

CHARTER DOES NOT PROVIDE PAY FOR COUNCIL'S APPOINTEE

STORY SHOULD BE HONORED

Will Alderman Attempt to Violate Mandates of Voters in this Illegal Business?

Oregon City is growing very tired of the presumptuous actions of its peculiarly constructed city council, and more than ever since that unique collection of trifling politicians has seen fit to absolutely ignore the mandates of the voters and the statutes which its own members created in not properly recognizing George L. Story as city prosecutor and in the illegal employment of C. Schuebel as city attorney.

The citizens of Oregon City have a right to know, and in their behalf the Courier asks, how the council is going to pass on a bill for \$60 each month, \$720 a year, for the employment of C. Schuebel as city attorney?

The council will not deny that when the voters elected George L. Story they intended that Mr. Story should be city prosecutor and should be the legal adviser and representative of this city. Yet we have the honorable body overthrowing the direct orders of the people and continuing Mr. Schuebel in charge of the city's legal affairs at a salary of \$60 a month.

We don't mind saying that Mr. Schuebel cannot legally collect his salary, inasmuch as the council had no legal right in appointing him.

The city charter does not provide that the city shall pay for legal talent, other than that furnished by the regularly elected city prosecutor. Add to that the fact that a majority of the voters of the city on December 4 expressed their approval of Mr. Story with the idea that he was to be the legal representative of the city, and you have a fair picture of the crime that our worthy city council is attempting to perpetrate.

But the Courier is of the opinion that the council cannot "get away" with this clever little bit of by-play, the voters will hardly stand for such a joke.

In spite of the fact that Mr. Schuebel is a competent attorney and a worthy gentleman, and in spite of the fact that he has advised the city in legal matters in a capable manner, the people have decided that they want a change.

This aldermanic ptoeracy of ours says that Mr. Schuebel shall be city attorney regardless of what the voter thinks about it.

It's a question of who's boss in these parts, and we have a very good idea that the citizens will prove untirely capable of handling all "boss" duties.

It has been intimated that Mr. Story might not be qualified from a point of legal knowledge for the duties of the office to which he was honestly and honorably elected. Such is not the case, if the record of that gentleman's activities can be taken as a gauge of ability. Mr. Story has practiced in the several courts of this state for a number of years, and even though he may not be as active as some of his younger colleagues, his record has been above reproach and he has done some highly important court work.

If Mr. Story was not capable it seems wonderful that the voters of this city should not have discovered the fact when he acted as city attorney for Oregon City during Mayor G. B. Dimick's administration in 1903 and 1904. It seems odd, too, that he should have been reappointed city attorney in 1911 and 1912, when Geo. C. Brownell and Judge Dimick took turns as mayor. Surely the voters had sufficient time in those four years to find out the ability of the man, and it stands as a glowing tribute to him to know that they thought enough of him and his ability to give him the honor of being the first man elected to be city prosecutor.

Certainly because a recorder's clerk inadvertently made the title of the office "city attorney" rather than "city prosecutor" on the election ballots, it is not to be taken to mean that the voters did not know what position Mr. Story sought. It is as plain as A. B. C. that Mr. Story was a candidate for election to be city prosecutor, and the voters so understood.

Mr. Schuebel also committed the error of seeking election as city attorney, an office that does not exist. The city council is egging on a certain recall movement by the extreme littleness of its actions.

Perhaps the matter will appear differently when the council is "called" and called in strong terms for any attempt it may make to pay Mr. Schuebel according to its illegal agreement. The Courier thinks that

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EAST SIDE RAILWAY MAY BE BUILT SOON

ESPEE FILES DEED TO RIGHTS OF WAY THROUGH WEST LINN, NEW ACTIVITY

The early construction of a railroad down the east side of the river from Portland to Salem and through West Linn appears to be a reality from the fact that on Saturday deeds transferring property for rights of way were filed with Recorder D. C. Boyles. The transfer was made by the Moody Investment company to the Southern Pacific railroad company. A partial release of a mortgage on the property by the Bankers' Trust company was also filed.

These deeds give the Espee practically a clear right of way between Portland and the Clackamas county line. Some years ago the company purchased what rights of way were then owned by the Willamette Falls railway, and have been adding to since that time. It is believed here that the company intends to build a double track system between Portland and Salem, in part over the present route, but mostly over new road bed in order to reduce certain grades and objectionable turns in the track.

Renewed activity in connection with this construction is an echo of the announcement made by the company four years ago, that it would build a four track system down the east side of the Willamette, using two tracks for steam trains and two for electric. It is said now, however, that the company has had so much success with its electric system that it will probably not attempt to build the steam lines at this time. From outside sources it is learned that the company is required, in consideration of the deeds filed Saturday, to complete the projected construction within the next 30 months. The monetary transaction is not given in the instruments on file.

RECEIVER OF LANDS IN FRAUD REPORTS

RANDALL SAYS PROPERTY OF N. W. ASSOCIATION RENTED. CLAIMS PENDING

Echoes of the crimes of Jesse Hazell, the master mind behind the infamous Northwestern association of Oregon City, which was the cause of the ruin of many eastern investors and fortune awaited their purchase of the worthless lands for sale by the association, were heard yesterday when T. P. Randall, receiver for the defunct company, filed his report.

Jesse Hazell has recently completed a term in the Multnomah county jail on a charge of using the mails to defraud in connection with his land scheme.

The association's property at Redland, considered very poor for orchard purposes, has been leased for \$160 a year. Mr. Randall's report shows. Forty-four persons invested in Hazell's land fraud, Mr. Randall says, and of these only 16 live on the Pacific coast. The most distant gives his address as 31 Coinston avenue, Wallney, Cheshire, England. He has a claim of \$540 against the company.

Since the association's property was heavily mortgaged even while it was being sold by Hazell it is considered almost impossible that any of the 44 investors can recover on total claims for \$31,000 against the company. Many purchasers have not filed claims, the \$31,000 representing those who have. Judgments already signed against the property amount to \$7390.58, with others pending.

These judgments are held by Martha Holme, R. A. Andrews, Alice Snyder, Walter Gruel, Lewis Gruel and D. C. Latourette.

The grass on the ranges is very good this winter and stock owners do not feed as much as usual. For this reason they have not been watching their herds as much as in past years and there may be more cattle gone than the losses already discovered would indicate. Twenty head have disappeared to date, it is said.

Beck Buys Property
The 34 by 105-foot lot at Fifth and Main streets, upon which the Portland house stands, was bought Monday by Frank Beck for about \$8500. The property was formerly owned by Mrs. Minnie L. Foster and was transferred by Dillman & Howland.

CLUBS WILL SEND TRAIN TO SALEM

REMONSTRANCES SIGNED IN DISTRICTS THAT WOULD LEAVE CLACKAMAS

HAWLEY MAKES \$100 GIFT

Oregon City Left on Branch of Pacific Highway After Promising Money

Clackamas county will not be divided if the Commercial club and the Live Wires of Oregon City have anything to say about the matter. Both organizations have held lively meetings this week and plans are under way already to thwart if possible any movement to create a new county from the eastern half of Clackamas, or for Oswego and 13 miles of contiguous territory to withdraw from the northwestern part of Clackamas and join Multnomah county.

At a Commercial club meeting on Monday night, attended by a large number of interested citizens, in addition to club members and the members of the county court, the plans proposed in both dissatisfied sections of the county were presented and discussed. The Commercial club proposed to send a special train, carrying as large a delegation as possible, to Salem for the purpose of taking the matters in hand when they are presented to the legislature.

Judge Anderson, speaking on behalf of the court, told of plans to spend \$50,000 in conjunction with state and federal funds, to build a permanent hard surfaced road from the Multnomah county line to Marion county, running directly through Clackamas county. This plan, intimated the judge, had received a severe set-back when it was discovered that the state highway commission had rerouted the Pacific highway so that Oregon City or its environs were left entirely off, being shunted six miles east on a branch road. If such a plan becomes effective, the judge said, it would mean a practical waste of money to build a road in Clackamas county that would not have improved continuation on either end. Every effort will be made by the court and the commercial club to prevent the successful culmination of the commission's plans, and this will probably be one of the important matters discussed by the delegation which will go to Salem aboard the special train.

The board of governors of the Commercial club Tuesday morning sent a man into the field armed with remonstrances to do what he could to offset the agitation for the creation of the proposed Cascade county from the eastern part of Clackamas county. The remonstrances are still being circulated and have had many signatures. The club governors and the county court as well have had a series of conferences with Oswego people regarding the proposed secession of that part of the county, but apparently no great good has been accomplished. A meeting which Oswego people will attend has been projected and several persons from that city will be asked to accompany the special train to Salem when the matter is taken to the legislature.

The appointment of a committee to head the fight against division when the matter is taken to Salem was the result of the Commercial club meeting. O. D. Eby, C. Schuebel, C. G. Huntley, Judge H. S. Anderson and B. T. McBain are members of this committee. In long resolutions adopted at the meeting the county court was commended for its road building proposals and a formal objection was expressed to any plan of division of the county.

At the Live Wire meeting on Tuesday the discussion was continued at length and the proposed creation of Cascade county was explained fully. It was pointed out that the leaders of the divisionists in Estacada want to include in the new county a large part of Oregon City's most valuable trade field, taking in sections of the county that would most likely vote against any such plan. The territory taken in does not include Sandy and Boring, because, it is said, Estacada fears she would have a fight against the two communities for the location of a court house. A narrow strip along the north side of the county is left out, but the new county would include Mount Hood and much of the territory around it, in addition to most of the Barlow-Wemme road. Colton, Viola, Highland, Logan and other sections of the county tributary to Oregon City are proposed as part of Clackamas county.

W. P. Hawley, Sr., and his son announced to the Wires a donation of \$100 toward the expense of taking a special train to Salem when citizens go to meet with the state legislature.

The Live Wires were much concerned over the information that new maps for the establishment of a permanent Pacific highway leave Oregon

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SPECIAL ELECTION MIGHT BE DEMANDED

COUNCIL GRANTS P. R. L. & P. CO. A SPECIAL PERMIT FOR OSWEGO JITNEY SERVICE

Under a 60-day special permit, granted by the city council at its special session on Thursday night, the first jitney to operate between Oregon City and Oswego left here Saturday morning. Regular hourly service will not be worked out for a few days, but in the meantime autos will run throughout the day. The Portland Railway, Light & Power company, operating the jitney line under the name of the Oregon City Motor Bus company, has a franchise application before the council and proposes to start a regular service between Main street and Mountain View and between Oregon City and Oswego.

Councilman J. F. Albright, who strenuously opposed throwing out the first meeting Wednesday night, is circulating initiative petitions to bring the matter before the people at an election. Mr. Albright says:

"I believe Mr. Foster is entitled to compete with the railway company, since he has agreed to post all required bonds and pay the heavy license fee asked by the city. I believe we will have no trouble in securing 150 signatures on an initiative petition to call a special election and I also believe that the people of Oregon City will vote to give a permit to someone other than the railway people."

COURT IS ACTIVE

Judge Anderson Interested in Preventing Secession in County



JUDGE H. S. ANDERSON

With the passing into history of the present turbulent times in county affairs, Judge H. S. Anderson and the incumbent commissioners will have achieved glory for having guided some of the roughest waters yet experienced in Clackamas county—and all without running dangerously afoul the many rocks that make the business of county management hazardous.

Judge Anderson is spending every hour in working out a destiny of better things for the county and he is capably assisted by the commissioners. On one side they have to combat ambitions that would give 13 square miles of territory to Multnomah county; on the other side there is danger of losing a full half of the county's territory, and on all sides are other troublesome matters that threaten many things. No sooner is a road program mapped out, whereby Clackamas county would have hard surfaced highway from the Multnomah to the Marion county line, than the state highway commission makes known its intention to leave Clackamas county entirely off the Pacific highway. And when the court attempts to reduce taxation the cities set up a howl because their "divvy" will be less. Withal, the job that County Judge H. S. Anderson has is one that few of us could fill with as much general satisfaction or with any personal delight.

It appears to the Courier, considering the character of the man and the nature of his manifold duties, that Judge Anderson is most worthy of the increased emoluments which the legislature will in all probability be asked to authorize.

Jones Fails at Salem

In spite of the fact that E. James Jones of Oswego had a "wife, six kids and a country newspaper" to support, and therefore sought election to be calendar clerk of the house at Salem, he was defeated by Charles Erskine, who held the position last year. Mr. Jones was in the same position with a large number of others at Salem in that he had been promised before hand enough votes from representatives all over the state to elect him. That the promises were watery is apparent.

Steal Children's Banks

The robbery of the home of Dr. and Mrs. L. G. Ice was discovered and reported to the police last Thursday. Thieves entered the home on Wednesday night and stole two toy banks in which the savings of the children in the family were held. Each bank contained a \$5 gold piece, in addition to much change. No clew has been found.

COUNTY'S SOLONS ACTIVE AT SALEM

DIMICK IS CHAIRMAN OF THE RESOLUTIONS COM. HAS BIG PROGRAM

MAY RAISE CALAVAN'S PAY

Legislators from Clackamas Placed in Important Positions in House and Senate

Its delegation in both houses of the legislature, in session at Salem since Monday morning, taking an active part in the work of law making and adjustment, Clackamas county is in a position to acquire fame. The senators and representatives of the county were all in their seats, the first thing Monday morning and immediately assumed important places in the legislative transactions of the session.

Senator Walter A. Dimick of Oregon City was appointed chairman of the resolutions committee by Gus C. Moser, president of the senate. Senator Dimick was also appointed a member of the important counties, industries, judiciary and printing committees. Joint Senator Harmon A. Lewis, the man who on Wednesday introduced the bill for the division of Clackamas county by cutting off the Oswego neighborhood, was made chairman of the agriculture and forestry committee and he is a member of the assessment and taxation committee, the public buildings and institutions committee, the roads and highways committee and the horticulture committee.

In the lower house George C. Brownell of Oregon City has been appointed chairman of the cities and towns committee by Speaker R. N. Stanford. Mr. Brownell is also a member of the immigration and judiciary committees. H. C. Stephens of George is chairman of the important counties committee and a member of the ways and means and banking committees. Representative H. A. Dedman of Canby is chairman of the labor and industries committee and a member of the banking, livestock and medicine, pharmacy and dentistry committees.

On the first day of the session Senator Dimick made the interesting announcement that he would abandon his attacks on the Oregon Naval militia, and that organization is practically insured little attention at this session. During the past six years Senator Dimick has been an ardent foe of the Naval militia appropriation and had been sponsor for several bills for the abolishment of the service. One session he carried a bill successfully through the senate, but it failed to pass in the lower house. This year the militia is asking \$15,900 in appropriations. Senator Dimick's first day was active. He introduced two resolutions and one bill and with his committee reported on two of his own resolutions. The bill which he introduced would make it a felony for an intoxicated driver to pilot an automobile. Miss Eva L. Moulton of this city is Senator Dimick's secretary.

The second day of the session saw even greater activity from Senator Dimick. He assumed leadership in a stern fight against figurehead officials, boards and commissions and a favorable report was made on his resolution to appoint a joint committee to investigate officials and commissions with a view to doing away with those which appeared unnecessary. Senator Dimick introduced bills or resolutions to reduce the number of clerks on certain committees, to limit the time for presenting bills to the 30th day of the session, to close the China pheasant season until October 1, 1919, and thereafter open it for only one month each year and a resolution providing that clerks receive no overtime pay.

George C. Brownell, whose secretary is Miss Malva Bolle of Oregon City, offered house bill number 3 on Tuesday to repeal the Oregon-Washington joint law regulating fishing in the Columbia river and a bill to fix the full salary of justices of the supreme court at \$4500 a year. Another bill introduced by Brownell would increase the limit of an employee's salary under garnishment from \$75 to \$100 a month. He is also sponsor for a bill to increase the salary of County School Superintendent Calavan from \$1000 to \$1500 a year, with \$300 additional for traveling expenses.

Each of the senators and representatives from this county have other important matters which they will present to the two houses during the session. The new men in the house are taking a few days to accustom themselves to the procedure, but promise untiring labors within the week.

A number of Oregon City and Clackamas county people have been at Salem this week taking in the biennial legislative show. They report things running smoothly and in unusually rapid style.

COURT CHANGES TEN ROAD SUPERVISORS

T. A. ROOTS AND 47 OTHERS ARE RETAINED TO BUILD ROADS IN THIS COUNTY

Ten changes are announced by the county court in the list of supervisors in the 56 road districts of the county. The court completed a review of the 1917 appointments last night and the Courier is the first paper to publish the revised list. Roadmaster T. A. Roots, of course, is retained, and changes are made in districts 1, 11, 15, 22, 35, 43, 47, 51 and 54. There are 56 districts altogether, making 57 road supervisors, including Roadmaster Roots. The complete list follows:

T. A. Roots, Roadmaster, Oregon City.
District 1, M. E. Gaffney, Clackamas, route 1; 3, H. Seibert, Boring, route 3; 4, J. A. Kitching, Estacada; 5, John Meyer, Boring; 6, R. E. Earl, Boring; 7, Dave Douglas, Sandy; 8, C. W. Kern, Brightwood; 9, Fred Lins, George; 10, Charles Duncan, Estacada; 11, Charles R. Livesey, Oregon City, route 6; 12, E. C. Gerber, Oregon City, route 2; 13, J. Fullam, Oregon City, route 3; 14, H. Henrich, Oregon City, route 1; 16, H. Engle, Oregon City, route 1; 17, G. Koehler, Canby; 18, F. Kamrath, Oregon City, route 3; 19, R. Schuebel, Canby.

District 21, W. S. Gorbett, Colton; 22, S. A. D. Hungate, Molalla, route 2; 23, W. R. Zimmerman, Aurora; 24, L. P. Spagle, Aurora; 25, C. H. Lorenz, Aurora, route 1; 26, W. O. Vaughn, Molalla; 27, I. D. Larkins, Marquam; 28, Leslie Shank, Molalla; 29, G. H. Gray, Aurora, route 3; 30, Ed Wanker, Oswego; 31, G. C. Peters, Sherwood, route 1; 32, Harry Jost, Sherwood, route 2; 33, F. Millard, Estacada; 34, W. Kaiser, Oregon City, route 7; 35, R. A. Hutchins, Boring, route 1; 36, J. McKinzie, Woodburn, route 2; 37, C. W. Kruse, Oswego; 38, R. Richardson, Milwaukie, route 1; 39, H. Fisher, Oregon City, route 3; 40, D. L. Erdman, Boring.

District 41, H. H. Udell, Eagle Creek; 42, A. C. Taylor, Hubbard, route 2; 43, W. H. Douglass, Barton, route 1; 44, A. S. Newton, Oregon City, route 1; 45, L. P. Elliott, Colton, route 1; 46, E. Nachand, Oregon City, route 6; 47, O. P. Roethe, Milwaukie, route 1; 48, Carl Alt, Boring, route 2; 49, Elmer T. Davis, Estacada, route 1; 50, F. M. Townsend, Clackamas, route 1; 51, Jake DeYoung, Boring, route 3; 52, W. H. Kanne, Lents, route 2; 53, Ernest Conrad, Molalla, route 1; 54, Benj. Stanton, Hubbard, route 2; 55, G. Hively, Estacada; 56, A. J. Cota, Springfield, route 1; 57, A. F. Eymann, Aurora, route 2; 58, John C. Miller, Barton.

CITY SPENDS TOO MUCH

Oregon City spent \$2110.09 more than its budget for 1916 provided, figures compiled by Recorder J. W. Loder show. The emergency fund has a deficit of \$1280.55, according to Mr. Loder, and the operation of the municipal elevator cost \$467.55 more than was expected. The gross deficit amounts to \$2697.83, but balances in other funds total \$587.74. The health and police budget has a deficit of \$237.05; the fire and water service cost \$192.34 more than its appropriation; light cost \$38.36 in excess of the budget. Other deficits are: Printing, \$446.89; elevator, \$467.55; emergencies, \$1280.55; streets, \$434.99.

BONE DRY LAW READY

Rep. Anderson Will Present Measure With Emergency Clause

Shadows of the state's "bone dry" law are casting themselves before and the bill to provide all the iron bound rules for the restraint of liquor traffic in any form will be presented at Salem tomorrow if the lower house decides to adjourn over the week-end. Representative Anderson is listed to present the bill being drafted by Portland attorneys.

While the measure is not yet complete, it is certain that it will carry no search and seizure provision. Dr. Anderson and other dry leaders on the ground declare that it merely will carry into effect the wishes of the people, as expressed by the constitutional amendment adopted last November.

The bill will carry an emergency clause, however. That will make it operative immediately after it passes the two houses and is signed by the governor. Inasmuch as the alcoholic traffic committees of the two houses propose to hold joint sessions before placing it on third reading in either house, the bill is not likely to encounter serious delays. According to the schedule now mapped out for it, the measure should get through both houses inside of three weeks. That will make it effective about February 1.

You will regret not having subscribed for the Courier and four magazines when the offer is closed.

4972 PERSONS IN CASCADE COUNTY

MR. JOHNSON ESTIMATES TOTAL ASSESSED VALUATION AT ABOUT \$4,578,201

COUNTY IN DEBT \$102,300

Proposed New County Would Receive Equity in Properties and Real Estate

The total assessed valuation of all property within the proposed boundaries of Cascade county, which would be formed by the secession of an irregular east half of Clackamas county, is placed at \$4,578,201.08 by G. F. Johnson, who was commissioned to compile statistics for the Estacada people who are behind the agitation for secession. Mr. Johnson has compiled figures showing the approximate population of the district, the value of all county equipment and the condition of county finances and has submitted them to his employers.

The total assessed valuation of the territory which would secede is placed at slightly more than four and one half million dollars, while the total assessed valuation of the entire county this year is \$28,737,352.94, and almost half the territory of the entire county is included in the proposed county.

Mr. Johnson has figured the school age population of the eastern section which would withdraw from Clackamas at 1530. An estimate of the total population can be made from that figure by multiplying by 3.25, the figure commonly used. This gives an estimated population of 4972 persons, approximately one-sixth of the entire population of Clackamas county.

According to the same set of statistics, a sum of \$24,334.35 was spent from the general road fund last year for the improvement and building of roads in the districts involved in the projected secession.

Mr. Johnson has included in his compilations, at the request of his employers, general figures relative to the county's condition. He shows the total net indebtedness of the county to be \$102,300.19, with properties valued at \$140,741.10. Of these properties the court house and furnishings are most valuable, representing an estimated worth of \$127,500. Road machinery and equipment is estimated to be worth \$4,041.10 and real estate, such as gravel pits, etc., is placed at \$9200.

The total amount of cash in the general fund is \$12,964.58 and the amount in the road fund is \$31,810.13, Mr. Johnson's figures show.

In case of a division of the county the new county would be entitled to the value of its equity in real estate and machinery, as well as all other general county property and a share of the funds.

A MATTER OF LAW

Charter Gives Council No Right to Employ Attorney Schuebel

C. Schuebel says: "Should the city council desire to employ Mr. Story, or any other person, to have charge of the civil work for the year they must enter into a SPECIAL CONTRACT with him for that service."

The city charter, which the council has disregarded in appointing Mr. Schuebel, says: "The city prosecutor shall be ELECTED for one year by the qualified voters of this corporation at the general election next preceding the expiration of the term of the then incumbent of the office, and shall hold his office until his successor is elected and qualified."

And in the entire 294 pages of the new city charter Mr. Schuebel, nor any one else, can find no single clause that would indicate the council's power to appoint, at a regular salary, any legal talent.

ROBERTS' ARRESTED

Man Drinks Pint of Denatured Alcohol and is Jailed

John Roberts was a sadly mutilated man when he was released from the city jail on Wednesday morning after suffering through the night from the mental and physical injury sustained when he was "kicked" by a pint of denatured alcohol. When Roberts was arrested on Tuesday night the remains of a quart bottle of alcohol were confiscated, indicating that he had consumed about a pint of the denatured poison and lived to tell the tale. "It sure had a kick," was Roberts' statement as he left the jail with but little trace of any poisonous effect the fluid might have had.

Estate Valued at \$15,000

Letters of administration are asked in the estate of Margaret Mitchell Knight, who died intestate in Multnomah county, September 5, 1915, by William A. Knight, the widower. The estate comprises real property valued at \$15,000, located at Knight station, in this county. There are three heirs, the husband and two daughters.